

The Pepsu Representation on Sikh Gurdwaras Board (Preparation of Electoral Rolls) Rules, 1959

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UNION OF INDIA

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Rule

THE-PEPSU-REPRESENTATION-ON-SIKH-GURDWARAS-BOARD-PREPARATION-OF-ELECTORAL-ROLLS-RULE S-1959 of 1959

Published on 10 January 1959

Commenced on 10 January 1959

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The Pepsu Representation on Sikh Gurdwaras Board (Preparation of Electoral Rolls) Rules, 1959

Published vide Punjab Government Home Department Notification No. 55 Gurdwaras, dated the 10th January, 1959. 1102.

1.

Short title and commencement.

(1)

These rules may be called the Pepsu Representation on Sikh Gurdwaras Board (Preparation of Electoral Rolls) Rules,

1959.

(2)

They shall come into force at once.

2.

Definitions.

- In those rules, unless the context otherwise requires -

(a)

`Act' means the Sikh Gurdwaras Act, 1925, as amended from time to time;

(b)

`elector', in relation to a constituency, means a person whose name is entered in the final electoral roll of that constituency;

(c)

`electoral roll' means the roll prepared in accordance with these rules;

(d)

`Electoral Registration Officer' means the Officer appointed by the State Government to perform the duties of the Electoral Registration Officer, for the purposes of these rules;

(e)

`extended territories', `Commissioner, Gurdwara Elections' and `Resident' shall have the same meaning as are respectively assigned to them in the Act;

(f)

`Schedule' means a schedule to these rules;

(g)

`Scheduled Castes' means all such castes, races or tribes or parts of or groups within such castes, races or tribes as have been specified to be Scheduled Castes, in relation to the State of Punjab, under Article 341 of the Constitution of India.

3.

Division of seats among district and delimitation of constituencies.

(1)

The number of seats allotted to each district for returning the members in pursuance of clause (b) of sub-section (1) of section 148-B of the Act, shall be as indicated in Schedule 1.

(2)

The constituencies in which each district shall be divided and the number of total as well as Scheduled Castes seats allotted to each such constituency, shall be as indicated in Schedule 11.

4.

Preparation and publication of electoral roll. -

(1)

The Electoral Registration Officer shall in such manner as the Commissioner, Gurdwara Elections, may direct, prepare an electoral roll for each constituency which shall contain the names of the persons specified in clauses (v) and (vi) of sub-section (2) of section 148-B of the Act, who are resident in the constituency or have otherwise opted for that constituency in accordance with the provisions of sub-rule (2).

(2)

In cases where a person entitled to be an elector in pursuance of sub-section (2) of section 148-B of the Act is resident in more than one constituency or is not resident in the extended territories, he shall within 6 days of the publication of these rules in the Official Gazette, intimate to the Electoral Registration Officer his option as regards the Constituency in the electoral roll of which his name may be included :

Provided that if no such option is received within the aforesaid period, the Electoral Registration Officer shall include his name in the electoral roll of such constituency as he may think proper.

(3)

Immediately after the electoral roll of a constituency is ready the Electoral Registration Officer shall publish the same at the offices of the District Magistrate, Sub-Divisional Officer, Tehsildars and Naib-Tehsildars, having jurisdiction in the constituency, and at the offices of the local bodies in the constituency.

5.

Applications for inclusion, exclusion and transposition, of Names from electoral rolls and final publication thereof.

(1)

When an electoral roll has been published under the provisions of rule 4, -

(a)

any person who is entitled to be registered in the electoral roll of a constituency may apply for the inclusion of his name, if his name is not already included therein;

(b)

any person whose name is included in the electoral roll of a constituency -

(i)

may apply for transposing the entry relating to his name to the electoral roll of any other constituency or to any other place in the same constituency;

(ii)

may object to the inclusion of the name of any other person in the electoral roll relating to that constituency on the ground that the latter does not fulfil any of the requirements of section 148-B of the Act.

(2)

Each application under sub-rule (1) shall be addressed to the Deputy Commissioner concerned and shall be delivered to him or to such officer as may be authorised by him in this behalf, personally or through an authorised agent, within six days of the publication of the electoral roll.

(3)

The Deputy Commissioner on receipt of the applications preferred under sub-rule (1) shall, after such enquiry as he may think fit, pass such orders as he may think proper :

Provided that he shall not decide the objection against the person, the inclusion of whose name has been objected to, without giving him an opportunity of being heard.

(4)

The order of the Deputy Commissioner passed under sub-rule (3) shall be final and he shall convey the same to the Electoral Registration Officer immediately.

(5)

The Electoral Registration Officer shall make necessary changes in the relevant electoral roll in accordance with the orders received by him under sub-rule (4).

(6)

The electoral roll so amended shall be the final electoral roll of the constituency and shall be published by the Electoral Registration Officer at the places at which the preliminary electoral roll was published :

Provided that the Commissioner, Gurdwara Elections, may, at any time, order the correction of any clerical error, that may come to his notice, in the electoral roll.

I.

[See rule 3(1)]

Division of seats among Districts

Serial No.

Name of District

Total number of number of seats allotted

Number of seats reserved for Scheduled Castes

1

2

3

4

1

Patiala

9

2

2

Sangrur

11

2

3

Bhatinda

11

2

4

Kapurthala

4

Nil

5

Mahendragarh

Nil

Nil

Total

35

6

II

[See rule 3(2)]

[List of Constituencies]

Serial No,

Name of District

Name of constituency

Extent of constituency

Total number of seats allotted

Number of seats reserved for Scheduled castes,

1

2

3

4

5

6

1

Patiala

(1) Patiala

Patiala Tehsil

3

6

(2) Sirhind

Sirhind Tehsil

4

1

(3) Nabha

Nabha Tehsil

1

Nil

(4) Rajpura

Rajpura, Kandaghat and Nalagarh Tehsils

1

Nil

Total

9

2

Serial No

Name of District

Name of constituency

Extent of constituency

Total number of seats allotted

Number of seats reserved for Scheduled castes

1

2

3

4

5

6

2

Sangrur

(1) Sangrur

Sangrur, Jind and Narwana Tehsils

4

1

(2) Malerkotla

Malerkotla Tahsil

3

Nil

(3) Barnala

Barnala Tehsil

4

1

Total

11

2

3

Bhatinda

(1) Bhatinda

Bhatinda Tehsil

5

1

(2) Faridkot

Faridkot Tahsil

3

Nil

(3) Mansa

Mansa Tahsil

3

1

Total

11

2

4

Kapurthala

(1) Kapurthala

Kapurthala Tahsil

3

Nil

(2) Phagwara

Phagwara Tehsil

1

Nil

Total

4

Nil

GRAND TOTAL

35

6

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